

ELIZABETH II



1970 CHAPTER xli

An Act to confer further powers on the county council of the North Riding of the county of York in relation to the finances of the county; and for other purposes.
[23rd July 1970]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to the finances of the administrative county of the North Riding of the county of York, and that the powers of the county council of that administrative county in relation to the investment of their superannuation fund should be amended as by this Act provided:

(2) It is expedient that the other provisions in this Act should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

(4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 1933 c. 51. have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by

and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the North Riding County Council Act 1970.

Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the following expressions have the meanings hereby assigned to them:—

1933 c. 51. “ the Act of 1933 ” means the Local Government Act 1933;

1936 c. 49. “ the Act of 1936 ” means the Public Health Act 1936;

1937 c. 68. “ the Act of 1937 ” means the Local Government Superannuation Act 1937;

1961 c. 62. “ the Act of 1961 ” means the Trustee Investments Act 1961;

“ the Council ” means the county council of the county;

“ the county ” means the administrative county of the North Riding of the county of York;

“ debentures ” includes debenture stock and bonds, whether constituting a charge on assets or not, and loan stock;

“ enactment ” means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ the fund ” means the superannuation fund maintained by the Council under Part I of the Act of 1937;

“ local authority ” means the council of a borough or an urban or a rural district in the county;

“ the Minister ” means the Minister of Housing and Local Government;

“ parish council ” means the parish council of a rural parish in the county, or where there is no parish council, the parish meeting of such parish;

“ police authority ” means the York and North East Yorkshire Police Authority;

1958 c. 45 “ recognised stock exchange ” in its application to the United Kingdom has the meaning assigned thereto by section 26 (1) of the Prevention of Fraud (Investments) Act 1958;

“ securities ” includes funds, bonds, mortgages, stocks, shares, debentures or notes;

“ shares ” includes stock;

“ signature ” includes a facsimile of a signature by whatever means reproduced;

“ statutory undertakers ” means any company, body or person authorised by any enactment to supply electricity, gas or water.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

3. In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

Power to
raise money
by bills.

(1) for any purpose for which the Council are authorised to borrow;

(2) in anticipation of the receipts of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “ North Riding County Council bills ”, in this section referred to collectively as “ bills ” and separately as “ a bill ”), subject to and in accordance with the following provisions:—

(a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:

(b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:

(c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:

(d) Bills shall be issued under the authority of a resolution passed by the Council and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:

(e) The Council may make regulations providing for—

(i) the preparation, form, mode of issue, payment and cancellation of bills;

(ii) the issue of new bills in lieu of bills defaced, lost or destroyed;

(iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and

(iv) the giving of a proper discharge on the payment of a bill:

- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised in respect of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
 - (i) the sum of one million, two hundred and fifty thousand pounds; or
 - (ii) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council;
 whichever is the greater:
- (h) Subject to the provisions of the last preceding paragraph the Council may renew a bill at maturity:
- (i) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has then been raised by the issue of bills.

Power to
raise money
by bearer
bonds.

4. In addition to any other method by which the Council may raise money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise money by means of the issue of bearer bonds or other securities to bearer.

Power to
raise money
abroad.

5.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there was substituted a reference to the foreign currency, and for any reference therein

to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency, adjusted where necessary to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction.

6.—(1) In its application to the Council section 21 (3) of the Act of 1937 shall have effect as if for the obligation to invest as mentioned in that subsection moneys forming part of but not for the time being required to meet payments out of the fund there was substituted an obligation to invest such moneys as follows, namely—

- (a) in or upon any investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the securities of any dominion, commonwealth, union, dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part thereof; or
- (c) in or upon any of the securities of any municipality, county or district council or local or public authority or board in the United Kingdom or any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or the legislature concerned to issue the same; or
- (d) in or upon any securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom government or by the government of any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid; or
- (e) in or upon any of the securities of the government of any foreign country or state; or
- (f) in or upon the debentures of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world; or
- (g) in or upon any guaranteed, preference or ordinary shares or any preferred or deferred or other shares of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world, being shares which at the time of making the investment are quoted on any recognised stock exchange or similar institution:

Extension of
power to
invest
superannua-
tion fund
moneys.

Provided that no investment shall be made at any time when the value of all the investments made under this paragraph which form part of the fund equals or exceeds three-quarters of the total value of the assets of that fund; or

(h) in the advance of money upon the security of—

(i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or

(ii) any legal estate or interest in immovable property comprised in a building agreement providing for the grant of a lease of such property contingent upon the erection or completion of the building specified in such agreement;

and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Council or by a mortgage or security made jointly to the Council and any other person.

(2) (a) For the purposes of the foregoing provisions of this section an investment in the units of a unit trust scheme or in participation certificates or in any form of participation under any trust or scheme established in the United Kingdom or in any of the territories or countries referred to in subsection (1) of this section having the effect of enabling persons to participate in the profits and income arising from the acquisition, holding, management or disposal of such securities or of such land or interest in land as are specified in that subsection shall be regarded as an investment in the securities in question or in such land or interest in land.

(b) In this subsection—

“ participation certificate ” means any document conferring upon the holder the right to participate in (or constituting evidence of the right of the holder to participate in) the profits or income arising from the acquisition, holding, management or disposal of a particular investment specified or described in the document;

“ unit trust scheme ” has the meaning assigned thereto by section 26 (1) of the Prevention of Fraud (Investments) Act 1958.

1958 c. 45.

(3) The restrictions contained in paragraphs 1, 2 (b) and 3 of Part IV of Schedule 1 to the Act of 1961 shall not apply to the securities in which the Council is authorised to invest by virtue of paragraph 1 of Part III of the said Schedule 1 or by virtue of subsection (1) of this section.

7.—(1) Subject to the provisions of this section, the powers exercisable by the Council under the Act of 1961 to invest any property belonging to the wider-range part of the fund shall include power to invest such property—

Investment of super-annuation fund moneys in acquisition, etc., of land.

(a) in such manner as they think fit (and whether alone or in association with any other person) in the acquisition, development or management of land situated in the United Kingdom or any interest in such land and used, or to be used, for residential, commercial or industrial purposes;

(b) in undertaking or financing, whether alone or jointly with any other person—

(i) the erection of a new building or the improvement or extension of an existing building; or

(ii) building operations or other development;

on land belonging to the Council or to any other person or on land which is or will be held jointly by the Council and any other person;

but Part IV of Schedule 1 to the Act of 1961 shall not apply to any investment made under this section.

(2) So long as the value of the investments of property for the time being made under the powers conferred by the foregoing subsection is equal to or greater than one-quarter of the total value of the wider-range part of the fund, no further investment may be made thereunder.

(3) For the purposes of the last foregoing subsection, the value of any investment of property belonging to the wider-range part of the fund shall be deemed to be the value of the investment at the time at which it was made.

(4) Subsections (2) to (7) of section 6 of the Act of 1961 shall apply in relation to the exercise of the powers of investment conferred by subsection (1) of this section as they apply in relation to the exercise by the Council of the powers conferred by section 1 of that Act to invest any property belonging to the wider-range part of the fund in a manner specified in Part III of Schedule 1 to that Act.

(5) In this section “property” and “the wider-range part” in relation to the fund have the same meanings as they have for the purposes of the Act of 1961.

Section 21 (3) of Act of 1937 not to limit foregoing powers.

8. The provisions of the last two foregoing sections shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

9. All costs, charges and expenses incurred by the Council in investing moneys forming part of the fund or otherwise in relation thereto shall be paid by the Council out of the fund.

Expenses of investment of superannuation fund.

Power to
lend, etc., for
purchase,
etc., of land,
or for
building
purposes.

10.—(1) The Council may advance money to—

- (a) any person for the purpose of enabling or assisting him to purchase or lease any land in the county; or
- (b) the purchaser or lessee of any land in the county for the purpose of enabling or assisting him to construct, extend or improve any building on the land or to provide services or facilities relating thereto.

(2) The amount of the principal of any advance made under this section shall not exceed three-quarters of the amount which in the opinion of the Council will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

1963 c. 29.

(3) The provisions of subsections (2), (4) and (5) of section 3 of the Local Authorities (Land) Act 1963 (which section empowers local authorities to make advances for the erection of buildings on land sold or let by them) shall apply in relation to an advance made under subsection (1) of this section, and for that purpose those provisions shall have effect subject to the substitution for references therein to an advance made under the said section 3 of references to an advance made under subsection (1) of this section, and to any other necessary modifications.

(4) Any person acting on behalf of the Council and authorised in writing by the clerk of the Council shall have power at all reasonable times, after giving not less than seven days' notice to the occupier, to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(5) In this section—

- “land” includes land covered by water; and
- “lessee” includes a person to whom the owner has agreed to grant a lease.

Power to
Council to
assist industry.

11. The Council may, if requested so to do by any person—

- (1) who is the owner or intended owner or lessee of any land in the county; or
- (2) who has purchased or intends to purchase or take on lease from the Council any land (whether within or outside the county);

being in either case land upon which an industrial building is built or is intended to be built, extended or improved, carry out any work required in relation to the preparation or improvement

of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends, and may make grants towards the cost of such works or of the provision or improvement of such services or facilities, or both:

Provided that nothing in this section shall authorise the Council to carry out works for the provision or improvement of services which it is the function of statutory undertakers to provide or improve.

In this section "industrial building" has the meaning assigned thereto by the Local Employment Act 1960. 1960 c. 18.

12.—(1) The Council may provide services and facilities for the processing of data by computer or by any other equipment of the Council which the Council may possess for any person and the Council may make such charges as may be agreed for the provision of those services and facilities. As to use of electronic and mechanical equipment of Council.

(2) Information obtained by any employee of the Council in the course of the provision of such services or facilities shall not, without the consent of the person from whom it was obtained, be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities, or in such cases as may be required by law.

13.—(1) The Council may lend to any local authority, and a local authority may borrow from the Council, upon such terms and conditions as may be agreed, such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed, and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment by the local authority of the money they are authorised to borrow. Power to Council to lend money to local authorities, etc.

(2) Any sum borrowed by the Council for the purposes of this section shall be paid within a period to expire not more than one year after that for which the same was lent by them to the local authority.

(3) Where any sum is borrowed by the Council for the purposes of this section it shall be lawful for the Council for such periods as they may think fit to suspend any annual provision required to be made by virtue of any enactment for the time being in force for the repayment of the sum borrowed.

(4) The Council shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Council and the borrower:

Provided that the Council shall ensure so far as it is reasonably practicable to do so having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Council in respect of the loan.

(5) All costs, charges and expenses incurred by the Council in respect of any particular loan under this section shall be met by the borrower.

(6) In this section "local authority" means the council of any county district in the county, the police authority and any other authority having jurisdiction within the county being a local authority as defined by section 34 of the Local Loans Act 1875, and includes any river authority or drainage board having jurisdiction within the county and any joint board if all the constituent authorities are such local authorities as aforesaid.

1875 c. 83.

General
insurance
fund.

14.—(1) The Council may establish a fund to be called "the insurance fund" with a view to providing a sum of money which shall be available for making good all such losses, damages, costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as "the specified risks").

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance office against the whole or any part of all or any of the specified risks.

(3) In each financial year after the establishment of the insurance fund the Council shall pay into that fund either—

(a) such a sum as shall, in their opinion, be not less than the aggregate amount of the premiums which would be payable if the Council fully insured in some insurance office of good repute against the specified risks; or

(b) if the Council insure in some insurance office against the whole or part of all or any of the specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Council may (if they think fit) discontinue the yearly payments to the fund, but if the fund is at any time reduced below the prescribed amount, the Council shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount and if at any time the Council reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed, such moneys shall be transferred to the county fund.

(5) The Council shall provide the yearly payments aforesaid by contributions from the revenue moneys of the county fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Council which, if the specified risks were insured against in an insurance office, would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses, damages, costs and expenses in respect of the specified risks, all moneys for the time being standing to the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in the manner authorised by section 15 (Investment of capital, insurance, etc., funds of Council) of this Act, and the interest and other annual proceeds received by the Council in respect of such investments shall be carried to the county fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section, the Council shall in every year, so long as the fund is less than the prescribed amount, carry to the credit of that fund out of the revenue moneys of the county fund, an amount equal to the interest and other annual proceeds carried to the county fund in pursuance of the last foregoing paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount, the interest and other annual proceeds received by the Council in respect of or on investments forming part of the insurance fund and carried to the county fund, may be apportioned in the accounts of the Council between the several undertakings, departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) For the purposes of this section the Council may, if they deem it expedient, include in the specified risks, risks of accident to any teacher, caretaker or other person employed in any voluntary school in the county.

(8) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Council in respect of the specified risks in the order of the dates on which such losses, damages, costs or expenses become ascertained, and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses, the Council may, with the sanction of the Minister, borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the

amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the county fund and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings, departments or services of the Council, and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

1953 c. 26.

(9) In the event of the insurance fund ceasing to be required to meet losses, damages, costs and expenses in respect of the specified risks, the insurance fund may be carried to and form part of any capital fund established by the Council under section 1 of the Local Government (Miscellaneous Provisions) Act 1953, or (if the Council so determine) shall be applied in such other manner as the Minister may approve towards the discharge of any debt of the Council or otherwise for any purpose for which capital money may properly be applied.

(10) Any covenant or obligation binding on the Council to insure against any risk shall (except in so far as the terms of such covenant or obligation otherwise specifically provide) be deemed to be satisfied by a resolution of the Council under subsection (1) of this section and that risk shall be one of the specified risks.

(11) In this section—

(a) “insurance office” means (i) an insurance company or (ii) an underwriter, being a member of an association of underwriters;

(b) “prescribed amount” means such sum as may from time to time be prescribed by the Council.

Investment
of capital,
insurance,
etc., funds of
Council.

15. Notwithstanding anything in any other enactment the moneys standing to the credit of any capital, insurance, repairs, reserve, renewals, contingencies or other similar fund established by the Council, other than funds applicable wholly or partly for the redemption of debt, may be invested in similar manner and subject to the same restrictions as money of the superannuation fund.

Power to
borrow.

16.—(1) The Council may borrow—

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

17. It shall not be lawful to exercise the powers conferred by Exchange any of the provisions of this Act except in compliance with the control. Exchange Control Act 1947.

1947 c. 14.

18. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act. Costs of Act.

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North Riding County Council Act 1970

CHAPTER xli

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